

Babita Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 May 2024 · 2024:AHC:81724-DB · WRIT - C No. - 14992 of 2024 · **Writ disposed; relegated to CGRF/Ombudsman under Clause 7.10.**

HEADNOTE

An Executive Engineer's communication is amenable to the Consumer Grievance Redressal Forum and Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005, an efficacious alternative forum that can also examine disputed facts; Article 226 interference is declined. If the consumer avails that remedy within three weeks, it is to be decided without a limitation objection and as expeditiously as possible.

FACTUAL SUMMARY

Babita Sharma invoked the writ jurisdiction of the Allahabad High Court against a communication dated 09.01.2024 issued by the Executive Engineer of the power distribution corporation. Counsel for the petitioner and for the corporation were heard. A later communication dated 09.04.2024 was on the record but was not the subject of challenge. The petition did not proceed as a merits contest of either communication.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy — CGRF and Ombudsman

HOLDING

Against an Executive Engineer's communication, Clause 7.10 of the U.P. Electricity Supply Code, 2005 supplies an efficacious alternative remedy before the Consumer Grievance Redressal Forum and Ombudsman, including where facts are in dispute; Article 226 interference is declined. Subject to the consumer availing that remedy (styled as appeal) within three weeks, it is to be dealt with and decided without a limitation objection and as expeditiously as possible. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE EXECUTIVE ENGINEER'S COMMUNICATIONS DATED 09.01.2024 AND 09.04.2024

226 declined for the Clause 7.10 route; the 09.04.2024 communication was also noted as unchallenged. ¶ 3